

**BEFORE THE  
GOVERNING BOARD  
BENICIA UNIFIED SCHOOL DISTRICT  
SOLANO COUNTY  
STATE OF CALIFORNIA**

**In the Matter of the District's Reduction in Force of:**

**JULIE COHEN and NAVNEET HAYER,**

**Respondents.**

**OAH No. 2025040031**

**PROPOSED DECISION**

Administrative Law Judge Juliet E. Cox, State of California, Office of Administrative Hearings, heard this matter on April 11, 2025, by videoconference.

Attorney Joshua A. Stevens represented complainant Damon Wright, Ed.D., Superintendent, Benicia Unified School District.

Attorney Ernest H. Tuttle III represented respondents Julie Cohen and Navneet Hayer, both of whom were present.

The matter was submitted for decision on April 11, 2025.

## **FACTUAL FINDINGS**

1. At its meeting on February 20, 2025, the Governing Board (Board) of the Benicia Unified School District (District) adopted District Resolution 24-25-25. This resolution declares the District's intention at the end of the 2024–2025 academic year to reduce certificated employee services as stated in the resolution, with the total amount of reduction equivalent to six full-time employees.

2. Acting in her official capacity as the District's Assistant Superintendent for Human Resources, Pat Jennings, Ed.D., gave timely notice in writing to four District employees that the District Board proposed to release them from employment in accordance with Resolution 24-25-25.

3. Two of the employees to whom Jennings directed the notices described in Finding 2, Julie Cohen and Navneet Hayer, timely requested hearings on their re-employment.

4. Complainant Damon Wright, Ed.D., the District's Superintendent, recommends that the District Board release the respondents named in Finding 3 from employment, after the 2024–2025 academic year, in the positions in which they have served during this academic year. Complainant alleges that the District should release these employees because it has chosen to reduce or eliminate services that they provide, or because other persons with greater seniority will displace them from their positions.

5. As to respondents Cohen and Hayer, this decision addresses all challenges they made to complainant's proposal to release them from the positions in which they served during the 2024–2025 academic year. Any contentions not

specifically addressed in this decision are found to be without merit and are rejected. To the extent that other challenges may have been possible but were not identified during testimony or in oral or written argument, respondents have waived those challenges.

## **Seniority Dates**

6. The 2024–2025 academic year was both respondents’ first year teaching students in the District. Both respondents have prior experience in other districts. Both respondents are elementary school teachers with multiple subject credentials.

7. According to the agreement between respondents’ employee organization and the District, certificated employees’ 2024–2025 academic year comprised 184 days. The first two days were teacher preparation days, before students reported for instruction. Those days occurred on August 8 and 9, 2024.

8. On August 7, 2024, the District held an orientation for new certificated and classified employees. Returning employees did not need to attend this orientation, but Jennings testified that she “expected” all new employees to attend. The evidence did not address whether any new employee failed to attend this orientation, or if so what consequences that employee experienced.

9. Respondents attended the orientation on August 7, 2024, and received hourly pay for this time, in addition to the salary they later received for work during the 2024–2025 academic year that began August 8, 2024.

10. During summer 2024, the District offered several professional development sessions that it called “New Teacher Bootcamp,” all of which occurred before August 7, 2024. Director of Educational Services Stephanie Rice notified some

new teachers, including Cohen, about these opportunities by email. Hayer testified, credibly and without contradiction, that she does not recall having received notice regarding the "New Teacher Bootcamp."

11. Cohen and Rice corresponded about the professional development opportunities, with Cohen explaining that she had an interest in several topics but feared that she would be unavailable to attend the sessions. Rice told Cohen that the August 7, 2024, new employee orientation would be "required," but that the "New Teacher Bootcamp" was "optional."

12. Both Rice's general announcement and her correspondence with Cohen stated that new teachers would be "paid on a timecard" for attending the "New Teacher Bootcamp." Neither Rice's general announcement nor her correspondence with Cohen stated specifically that the District would consider the training days as temporary employment, or that the District would consider those days as part of the new teachers' probationary employment. Neither Rice's general announcement nor her correspondence with Cohen stated specifically that the District would consider new District teachers who attended any of the "New Teacher Bootcamp" to have started their employment earlier than new District teachers who did not.

13. Neither Cohen nor Hayer attended any portion of the "New Teacher Bootcamp." Some other new teachers attended sessions on August 5, 2024. These teachers received hourly pay for this time, in addition to the hourly pay they received for attending the new employee orientation on August 7, 2024, and to the salary they received for work during the 2024–2025 academic year that began August 8, 2024.

14. In identifying employees for release in accordance with Resolution 24-25-25, Jennings used August 7, 2024, as both respondents' first date of paid service

to the District in a probationary position. Jennings treated the employees who had attended professional development sessions on August 5, 2024, as first having rendered paid service in a probationary position on that date, two days earlier than respondents.

15. Resolution 24-25-25 includes tie-breaking criteria, in case the District needs to release only some of multiple employees who share the same first date of paid service in a probationary position. Jennings did not use these criteria, because she believes all certificated employees who attended professional development sessions on August 5, 2024, to be senior in employment to both respondents. If Jennings had treated all new teachers in the 2024–2025 academic year as having started their probationary service on August 7, 2024 (at their new employee orientation) or August 8, 2024 (the first teacher preparation day), two other elementary school teachers with multiple subject credentials would have been equal in seniority to respondents, rather than senior to respondents, and Jennings would have needed to apply the tie-breaking criteria to choose only two of these four persons for release from employment.

16. The District does not propose to retain any other elementary school teacher with a multiple subject credential whose first date of service to the District was on or after August 7, 2024.

## **LEGAL CONCLUSIONS**

1. Jurisdiction in this matter exists under Education Code sections 44949 and 44955. The pre-hearing notices and actions described in Findings 1 through 4 satisfy these statutes' requirements.

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2. The District, through its Board, has discretion to reduce or eliminate particular kinds of services, in the best interests of the District and its students. The Board's exercise of this discretion as stated in Resolution 24-25-25 is not arbitrary or capricious, and is not an abuse of discretion.

3. Education Code section 44955, subdivision (c), requires the District to terminate employees "in the inverse of the order in which they were employed, as determined by the board in accordance with the provisions of" Education Code section 44845. Education Code section 44845, in turn, states that each employee "shall be deemed to have been employed on the date upon which [the employee] first rendered paid service in a probationary position." If employees have equal seniority, the District must choose among them on the basis of criteria that it discloses in writing, and that relate solely to the needs of the District and its students. (Ed. Code, § 44955, subd. (b).)

4. Respondents contend that their colleagues who attended the "New Teacher Bootcamp" did not render service "in a probationary position" on August 5, 2024. Rather, respondents contend that they and these other new teachers all began rendering service "in a probationary position" on August 8, 2024, the first formal day of the academic year described in their employee organization's agreement. For this reason, respondents contend that they are equal in seniority to employees who attended trainings on August 5, 2024, rather than junior to these employees.

5. School districts must categorize certificated employees as "probationary" if they are neither permanent employees nor substitute teachers. (Ed. Code, § 44915.) Temporary employment is possible, but only if the district gives the employee a "written statement" that "clearly indicate[s] the temporary nature of the employment and the length of time for which the person is being employed." (*Id.*, § 44916.) Without

such a statement, “the certificated employee shall be deemed to be a probationary employee of the school district, unless employed with permanent status.” (*Ibid*)

6. The matters summarized in Findings 10 through 12 do not show that the District notified any employee that attendance at the “New Teacher Bootcamp” would constitute temporary employment. Similarly, the matters summarized in Findings 8 and 9 do not show the new employee orientation to have been temporary employment. For these reasons, respondents have not shown that Jennings erred by treating their first date of paid service in probationary status as August 7, 2024, while treating August 5, 2024, as the first such date for others who attended training on that date.

7. In light of the matters stated in Findings 14, 15, and 16 and in Legal Conclusion 6, complainant does not propose that the District retain anyone less senior than respondents to provide services that respondents provided during the 2024–2025 academic year.

8. The matters stated in Finding 5 and in Legal Conclusions 1, 2, and 7 constitute cause under Education Code section 44949 and Resolution 24-25-25 to give notice to respondents Julie Cohen and Navneet Hayer that the District will not require their 2024–2025 academic year services after the 2024–2025 academic year. Resolution 24-25-25 confirms that the cause relates solely to the welfare of the District’s schools and of those schools’ pupils.

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## RECOMMENDATION

The District may give final notice to respondents Julie Cohen and Navneet Hayer that the District will discontinue their employment after the 2024–2025 academic year in the services they have provided during this academic year.

DATE: 04/22/2025

A handwritten signature in black ink that reads "Juliet E. Cox". The signature is written in a cursive, flowing style.

JULIET E. COX

Administrative Law Judge

Office of Administrative Hearings